

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: MARQUEZ, LEONARD E
HEARING DATE: 08/31/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00090
CASE NAME: GUTHRIE VS. NICHOLAS
LEAVE TO FILE SECOND AMENDED COMPLAINT
FILED BY: NICHOLAS, SHAY
TENTATIVE RULING:

Defendant and plaintiff* Shay Nicholas ("Dr. Nicholas") filed a motion on June 26, 2026 seeking leave to file a second amended complaint in these consolidated cases (the "Motion for Leave to Amend"). The Motion for Leave to Amend was initially set for hearing on November 9, 2026. The Court later advanced the hearing date to August 31, 2026.

*Although denominated as a "cross-complainant" on the caption of the moving papers, Dr. Nicholas is the plaintiff in the consolidated Case No. C23-00394.

Background and Analysis

No opposition was filed. However, the opposing parties filed a Notice of Conditional Non-Opposition to Motion to Amend on August 18, 2026. The paper does not oppose leave but indicates that they “will assert challenges to some or all of the new claims in the proposed amended cross-complaint if leave to amend is granted.”

Disposition

The Court finds and orders as follows:

1. The Motion for Leave to Amend is GRANTED.
2. Dr. Nicholas’ second amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
3. The defendants may file a responsive pleading in accordance with all applicable law.
4. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
ATTORNEYS FEES AND COSTS
FILED BY: NEXTGEAR CAPITAL, INC.
TENTATIVE RULING:

Plaintiff NextGear Capital, Inc. (“Plaintiff”) filed a Motion for Attorneys Fees on April 13, 2026 (the “Motion for Fees and Costs”). Plaintiff seeks an award of \$56,460.00 in attorneys’ fees plus \$17,580.72 in costs, not inclusive of any further fees incurred on this motion, as against defendants US City Auto Inc. and Farhad Aminzada (“Defendants”). The Motion for Fees and Costs was set for hearing on August 31, 2026. The motion is opposed.

Background

This matter was resolved by way of the granting of a Motion for Summary Adjudication as against Defendants as to the first, second, third and fifth causes of action, and awarded a judgment in favor of Plaintiff in the amount of \$1,488,052.52, as against both Defendants. See Declaration of Tom R. Normandin filed April 13, 2026 as part of the Motion for Fees and Costs (“Normandin Decl.”) ¶14; see also Minute Order dated April 2, 2026 (regarding February 23, 2026 hearing granting Summary Adjudication). The Court did not adjudicate the fourth cause of action for Conversion. See Minute Order dated April 2, 2026.

Analysis

No opposition has been filed and a Notice of Non-Opposition was filed by the moving party on August 26, 2026.

While the motion is not opposed, the Court concludes that it is not ripe. The fourth cause of action for Conversion has not been adjudicated and remains pending. No judgment has been entered. See Rule 3.1702 of the California Rules of Court (CRC); *Chen v. Valstock Ventures, LLC* (2022) 81 Cal.App.5th 957 (a trial court may not grant attorney’s fees to the party prevailing on a claim resolved on summary adjudication when other claims remain).

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is **DENIED**, without prejudice.
2. Plaintiff to prepare the order after hearing.

3. 9:00 AM CASE NUMBER: C25-02209
CASE NAME: BRASS DOOR RESTAURANT INCORPORATED VS. 8 TO 5 PROPERTIES LLC
CROSS COMPLAINT
FILED BY: BRASS DOOR RESTAURANT INCORPORATED
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendants, Shahla Azad, Seyed Ali Akbar Hejazian Yazdi, Mehrdad Hejazian, and Milad Hejazian to the cross-complaint filed by 8 to 5 Properties, LLC. **The demurrer is SUSTAINED, with leave to amend.** Any amended cross-complaint shall be filed and served on or before September 10, 2026.

A. Allegations and Background

8 to 5 Properties, LLC (“Landlord”), is the owner of commercial property in San Ramon (“premises”) consisting of a restaurant building, landscaping, sidewalks and a parking lot. The building houses The Brass Door, a steak house restaurant that has operated at that location for 60 years. The family of Landlord’s managing member, Nancy Schlesinger, has owned the premises for 78 years. (Cross-Complaint, ¶8.) On July 1, 2015, the original operator of The Brass Door and Landlord signed a new 10-year lease. (*Id.* at ¶9.) Soon after that, the business was sold to Shahla Azad and Seyed Ali Akbar Hejazian Yazdi. The original operator assigned the lease to them, with Landlord’s consent, on March 4, 2016. (See Cross-Complaint, Exhibits 1-2 [Lease and Assignment].) Milad and Mehrdad Hejazian are the “purported Manager” and self-proclaimed authorized “signatory” for Brass Door Restaurant. (Cross-Complaint, ¶¶4-5.)

During the Covid pandemic, “Individual Tenants” (a term not defined in the cross-complaint) approached the Landlord and requested rent relief, claiming severe financial hardship. Relying on these representations, Landlord executed a Temporary Addendum to the Lease on June 18, 2020, the effect of which was to reduce the amount owed to Landlord and require certain disclosures to Landlord. (See Cross-Complaint, ¶10, Exhibit 3 [Temporary Addendum].) When this addendum was signed, it was not disclosed that “Tenant/Individual Tenants” had already received or been approved for a Paycheck Protection Program loan of \$215,000 and ultimately received approximately \$2,000,000 in pandemic relief funds. (Cross-Complaint, ¶11.) Had Landlord been aware of this, Landlord would not have agreed to reduced rent. (*Ibid*)

“Tenant and Individual Tenants” benefited from \$62,832.36 in deferred rent. (Cross-Complaint, ¶12.) After Individual Tenants claimed to be suffering severe financial hardship, benefitted from the deferred rent, and received approximately \$2,000,000,00 from various pandemic relief funds, Individual Tenants purchased a property at 10 Hi Eagle Road, Alamo, California. (Cross-Complaint, ¶13.) Landlord believes the pandemic relief funds that were received by cross-defendants should have been paid to it, but were instead diverted to purchase the real property in Alamo. (*Ibid.*) The cross-complaint further alleges the property was transferred several times to hide the Individual

Tenants' actual interest in the property. (*Ibid.*)

The cross-complaint alleges failures by cross-defendants to maintain the premises in accordance with the lease terms, even upon being notified of the conditions through two inspection reports, such that in July 2025, the premises needed \$253,783 in immediate repairs. (Cross-Complaint, ¶¶14-15.) The cross-complaint also alleges failures by cross-defendants to maintain "all-risk" property insurance in accordance with the lease terms. (Cross-Complaint, ¶16.) The term of the lease expired June 30, 2025, and included options to extend, but cross-defendants failed to exercise their option in accordance with the terms. (Cross-Complaint, ¶¶17-18.) At the time of the attempted exercise of the option, cross-defendants were in default for unpaid rent, failure to maintain the premises, and failure to provide proof of insurance. (Cross-Complaint, ¶19.) Landlord served a 3-Day Notice to Cure or Quit on February 14, 2025, but the defaults were not cured and cross-defendants remain in possession. (Cross-Complaint, ¶¶20-21.)

On November 26, 2025, 8 to 5 Properties, LLC filed the cross-complaint, alleging causes of action for (1) Breach of Contract (Failure to Maintain Premises), (2) Breach of Contract (Failure to Maintain Adequate Insurance), (3) Unlawful Detainer, (4) Breach of Contract (Failure to Pay Rent), (5) Fraud, and (6) Breach of Covenant of Good Faith and Fair Dealing.

After efforts to meet and confer (see Declaration of Howard Olsen in Support of Demurrer, filed 4/8/26), cross-defendants filed this demurrer. All cross-defendants demur to the fifth cause of action for fraud while Mehrdad and Milad Hejazian demur on three grounds to the entire complaint on the following bases: (1) failure to state a cause of action, (2) uncertainty, and (3) misjoinder of parties.

Cross-complainant, 8 to 5 Properties, LLC, opposes the demurrer, arguing the usual pleading specificity required for fraud should be excused since the facts constituting the fraud here are peculiarly within the knowledge of the cross-defendants. They further argue that leave to amend should be granted in order to correct the "minor linguistic imperfections" leading to some uncertainty regarding the term "Individual Tenants."

B. Standard

In reviewing the sufficiency of a complaint (or cross-complaint), all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, citations omitted.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).)

C. Discussion

(1) Demurrer by all Cross-Defendants to Fraud (Fifth C/A)

Cross-defendants demur to the fifth cause of action based on the ambiguity of the term, "Individual Tenants." Cross-complainant opposes, arguing the pleading provides sufficient notice to prepare a defense.

"The elements of fraud that will give rise to a tort action for deceit are: (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; see also Civ. Code, §§ 1709-1710.) While generally fraud must be pleaded with specificity, less particularity is nonetheless required when the facts lie more in the knowledge of the opposite party.

This is applicable in the context of a cause of action for concealment where, from the nature of the allegations, the defendant must necessarily possess full information concerning the facts. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384, citations omitted.)

The problem here is that the cross-complainant and its managing member can provide more specificity. They likely know, for example, whether there was one conversation or more, what was said, whether the communication(s) was via phone or in person, which individual made the representation(s) concerning financial hardship and inability to pay rent, and which individual represented that no Covid relief was awarded. The lack of specificity, combined with the allegations against the individuals as a group, cause uncertainty and, potentially, also a failure to plead sufficient facts. The defect is readily curable, however, as cross-complainant points out, so leave to amend is warranted.

The demurrer to the fifth cause of action is sustained with leave to amend.

(2) Demurrer by Milad and Mehrdad Hejazian to all Causes of Action

As for the demurrers by Milad and Mehrdad Hejazian, neither is a signatory to any of the contract documents referred to in the pleading. In response to the demurrer, cross-complainant provides minimal analysis and no citations to authority for the position that designating Milad Hejazian as Manager and Mehrdad Hejazian as “signatory” is sufficient to allege contractual causes of action against them.

While numerous allegations refer to “Individual Tenants,” they are not “tenants” pursuant to any document attached to the cross-complaint, or subject to judicial notice. Because all the causes of action, aside from fraud, generally require a contractual relationship or possession of the premises (for unlawful detainer), the current allegations are insufficient to constitute a cause of action against Milad or Mehrdad Hejazian, even assuming they did represent themselves as agents of the restaurant.

Milad and Mehrdad Hejazian’s demurrer must therefore be sustained in full, with leave to amend.

4. 9:00 AM CASE NUMBER: C25-02209
CASE NAME: BRASS DOOR RESTAURANT INCORPORATED VS. 8 TO 5 PROPERTIES LLC
EXPUNGE LIS PENDENS
FILED BY: HEJAZIAN, MILAD
TENTATIVE RULING:

The motion to expunge *lis pendens*, filed by individual plaintiff / cross-defendant, Milad Hejazian, is **GRANTED**, as discussed below.

A. Background

This is a commercial lease dispute. In relevant part, the verified cross-complaint (filed by landlord, 8 to 5 Properties, LLC) alleges that the individuals named therein have committed fraud by misleading landlord into believing that they had failed to receive any Covid relief when, in fact, they had received such funds. The individuals then used the Covid relief money from the government to purchase a parcel of residential property in Alamo.

B. Motion and Opposition

Milad Hejazian, one of the named cross-defendants, moves to expunge the *lis pendens* both on the grounds that the cross-complaint does not contain a real property claim relating to the Alamo property, and because the cross-complainants cannot establish the probable validity of any such claim if one exists. In support of the motion, he submits a declaration from counsel, attaching various documents and identifying Milad Hejazian as the adult son of restaurateur Shahla Azad, one of the two signatories on the lease.

Cross-complainant, 8 to 5 Properties, LLC, opposes the motion. (The opposition brief is captioned “Cross-Defendants’ Opposition,” but is actually the opposition brief of the one cross-complainant, 8 to 5 Properties, LLC.) In support of the opposition, 8 to 5 Properties, LLC submits a declaration from Nancy Schlesinger, the LLC’s managing member, wherein she states the cross-defendants represented they were unable to meet their obligations for rent and to their employees, and had not been able to secure a loan for small businesses. She attaches an email to this effect. Schlesinger states she relied on the representation in executing an amendment of the lease in June of 2020 which forgave some rent and reduced several months’ rent. Schlesinger further states her belief that cross-defendants actually did receive Covid relief funds, but diverted them to purchase 10 Hi Eagle Road, Alamo, California. She bases this belief on a website’s listing of government assistance, a printout of which she requests judicial notice, and on unspecified “recorded documents.” The evidence is consistent with the verified cross-complaint, which, generously interpreted, alleges fraud in paragraphs 10-13 and 47-55.

In reply, Milad Hejazian argues 8 to 5 Properties, LLC has not met its burden to show the probable validity of a real property claim and distinguishes the cases on which it relies.

C. Request for Judicial Notice

Cross-complainant requests judicial notice of two purported screenshots from webpages it contends show money Brass Door received. The printouts show no authenticating features or specific dates. Assuming they are screenshots of websites managed by the government, there is no “official Web site” provision for judicial notice in California. (See *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 889.) The facts, even if assumed true, do not amount to a showing that funds were diverted to purchase property for the named individual cross-defendants, or even that any assistance was received *prior* to the email exchange with Schlesinger (in which it was communicated that Brass Door had not secured funds).

The request for judicial notice is **denied**.

D. Standard

A motion to expunge a *lis pendens* may be filed “at any time” after the *lis pendens* is recorded. (Code Civ. Proc., § 405.30.) The court may order the *lis pendens* expunged if: (1) the court finds that the pleading on which the notice is based does not contain a real property claim (Code Civ. Proc., § 405.31); (2) if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim (Code Civ. Proc., § 405.32); or (3) the court finds that the real property claim has probable validity, but adequate relief can be secured to the claimant by the giving of an undertaking (Code Civ. Proc., § 405.33).

“Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim.” (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647, citing Code Civ. Proc., § 405.30.) The plaintiff must “at least establish a *prima facie* case. If the defendant makes an appearance, the court must then consider the relative merits of

the positions of the respective parties and make a determination of the probable outcome of the litigation.” (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 319.)

E. Discussion

(1) The Cross-Complaint Does Not Contain Real Property Claim

The cross-complaint seeks to impose a constructive trust on the Alamo residence. The remedy is sought as a means by which 8 to 5 Properties, LLC could obtain the money it claims to be owed based on the fraud / underpayment of rent by cross-defendants. In other words, as described in the moving papers and reply, there has been no real property claim asserted here.

Historically, there was some disagreement among the courts about whether a *lis pendens* was appropriate when a creditor sought to impose an equitable lien or constructive trust on real property to recover on a debt, like the present scenario. However, some clarity has been achieved over the evolution of case law. In *Lewis v. Superior Court* (1994) 30 Cal.App.4th 1850, purchasers of real property sought expungement of a *lis pendens* filed in an action alleging that the seller had originally purchased the property with misappropriated funds. The *Lewis* court found that (1) the essence of the complaint was an effort to impose a constructive trust on the property, (2) the majority line of cases held that such a claim does not permit the recording of a *lis pendens*, and (3) the 1992 revisions to the *lis pendens* statute did not overrule that line of cases. (*Lewis, supra*, 30 Cal.App.4th at 1859, 1862–1864; see also *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 650 [distinguishing using fraudulently obtained funds to purchase property from fraudulent conveyance claim].)

The court in *Campbell v. Superior Court* (2005) 132 Cal.App.4th 904 followed the majority line of cases in holding that claims seeking imposition of a constructive trust and equitable lien did not support the recording of a *lis pendens*.

Here, cross-complainant makes no allegations that would support anything more than a right to money damages for the fraud alleged, thereby amounting to an equitable lien, not a right to any title to real property. Because the Court concludes no real property claim has been alleged, it need not engage in further analysis, but nonetheless provides the below commentary with respect to the probability of prevailing.

(2) Cross-Complainant Fails to Show Probable Validity

Cross-complainant argues that Shahla should have been a party to this motion to expunge since she is also on the title to Alamo property. Cross-complainant cites no authority for this position, other than a declaration by counsel with her opinion.

The argument begs multiple relevant questions. For example, assuming that Covid assistance was awarded to the Brass Door Restaurant Incorporated, there has been no showing that these corporate assets were appropriated by any named individual. The purchase of property by certain individuals within a group of persons, even a family, does not mean that the whole group is engaged in fraud. Questions remain as to who received or controlled the alleged funds, who was personally liable for the landlord’s alleged debt, if anyone, and what competing claims existed to any relief funds. While counsel represents Shahla is on the title to the Alamo property, no direct evidence has been submitted of that fact. The cross-complainant fails to answer or explain how these questions affect its claims.

Because the burden to show a probability of prevailing falls on the party that recorded the *lis pendens*, and because a number of questions remain unanswered by the evidence presented here, the motion must be granted.

F. Attorneys' Fees

Pursuant to California Code of Civil Procedure section 405.38 provides that a "court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust." Both sides assert they are entitled to fees here. Milad Hejazian is the prevailing party, but reserves his right to request fees. Accordingly, the Court need not address any specific claims at this time.

5. 9:00 AM CASE NUMBER: C25-02209
CASE NAME: BRASS DOOR RESTAURANT INCORPORATED VS. 8 TO 5 PROPERTIES LLC
1ST AMENDED COMPLAINT
FILED BY: 8 TO 5 PROPERTIES LLC
TENTATIVE RULING:

Defendants, 8 to 5 Properties LLC, and its managing member, Nancy Schlesinger, demur to the First Amended Complaint, filed by plaintiff, Brass Door Restaurant Incorporated. The demurrer is **OVERRULED**. Defendants' answer shall be filed and served on or before September 24, 2026 (this date is intended to accommodate hearing of the motion to strike set for September 14, 2026).

A. Allegations and Background

This is a commercial lease dispute involving a property in San Ramon at which plaintiff operated a restaurant. 8 to 5 Properties, LLC entered into the current lease with plaintiff's predecessor in interest on July 1, 2015. (FAC, Exhibit A [Lease].) The Lease is a 10-year lease with two 5-year options. Plaintiff took over the lease in March 2016. Rent at the time was \$14,000 per month, and has increased each year such that it was \$20,427.01 per month as of June 1, 2025. (FAC, ¶10-11.)

Plaintiff had been an exemplary tenant during the past 9 years of lease performance and has generally paid rent on time and in full and maintained the premises in good condition. (FAC, ¶12.) When the Covid pandemic hit, plaintiff, like every other restaurant in California, found itself subject to state and local government's severely restrictive shelter-in-place rules and could not operate at all, or was limited to takeout-only. (FAC, ¶13.) The rules severely impacted cash flow, including plaintiff's ability to pay rent. (*Ibid.*) Plaintiff conferred with its landlord about this emergency situation in April and May 2020. They agreed at that time that defendants would forgive April 2020 rent and reduce rent from May 1, 2020 - September 30, 2020. In conformance with parties' agreement, plaintiff started paying full rent in October 2020. (FAC, ¶14.)

Despite receiving full rent, defendant landlord has "agitated" for more money from plaintiff, demanding approximately \$63,000. (FAC, ¶15.) Defendant landlord has further raised meritless complaints about maintenance, reported plaintiff to the local health department, and sent people to inspect the property without warning and at times when the inspections interfered with plaintiff's business. (FAC, ¶¶16-19.)

Plaintiff took actions to exercise its option to extend the lease. Specifically, Shahla Azad corresponded with the property manager for defendants. In her correspondence, Shahla proposed an adjustment to the amount of rent. Defendants have since attempted to repudiate that the option was exercised and charge holdover rent. (FAC, ¶¶20-24.)

On May 23, 2025, parties mediated the dispute and negotiated an agreement to address this impasse. (FAC, Exhibit B [interim settlement agreement]).

Plaintiff alleges, in paragraph 26:

In an effort to negotiate an agreement to address this impasse, the parties mediated the dispute on May 23, 2025. At the end of the mediation, DEFENDANT and SCHLESINGER committed to producing a proposed lease for the upcoming option period. The purpose of the interim agreement was to provide a bridge between the stated termination date of the Lease and August 1, 2025 when the parties would commence the first 5-year option period of the Lease. As the interim agreement was an extension of the Lease agreement between the parties, it was not subject to any mediation confidentiality.

Parties agreed to a third party inspection, which occurred and concluded the premises were in "fair to good condition." Still, after the inspection, defendants demanded plaintiff conduct over \$200k in immediate repairs. (FAC, ¶28.) As of July 31, 2025, the interim agreement expired and defendants failed to comply with the terms of the interim agreement and the option provision of the lease. (FAC, ¶29.)

Plaintiff made a good faith effort to continue operating through 2025 and continued to pay rent while defendants "continued their campaign of harassment," but plaintiff finally made the decision to give up possession of the premises. (FAC, ¶¶30-31.)

Prior to, and after, returning possession, Shahla Azad made statements publicly that she would re-open Brass Door at another location. (FAC, ¶32.) Around December, Azad became aware that defendants had been posting written notices on various social media indicating that Schlesinger would "re-open" Brass Door under "new management." Defendants created a "Brass Door" Facebook page and then blocked plaintiff from accessing the page in an effort to hide efforts to market the "new" Brass Door. (FAC, ¶33.) Plaintiff also learned defendants applied to the US Patent and Trademark Office to trademark the "Brass Door" name and trademark. (FAC, ¶34.)

Plaintiff brought suit on August 1, 2025. On March 9, 2026, the FAC was filed, alleging: (1) Breach of Lease; (2) Breach of Covenant of Good Faith & Fair Dealing; (3) Intentional Interference With Prospective Economic Advantage; (4) Promissory Estoppel; (5) Temporary Restraining Order & Preliminary Injunction; (6) Declaratory Relief; (7) Breach of the Covenant of Quiet Enjoyment, and (8) Constructive Eviction.

After efforts to meet and confer (see Declaration of Pritpal Singh in Support of Demurrer, filed 4/14/26), defendants filed this demurrer arguing that the FAC is based on inadmissible content (subject to meditation privilege) and removal of the content would render the pleading uncertain, or deprive it of facts necessary to state a cause of action.

Plaintiff opposes the motion, arguing that the FAC is based on a settlement agreement that may have resulted from meditation, but which is not made inadmissible under the relevant statutes. At the time of writing, no reply has been received.

B. Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, citations omitted.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).)

C. Discussion

Defendants' demurrer provides little analysis, but argues each and every cause of action is based on inadmissible mediation writings or communications. Plaintiff counters that Evidence Code § 1123(d) provides grounds to allow use of the Interim Settlement Agreement. That provision states that a "written settlement agreement prepared in the course of, or pursuant to, a mediation, is not made inadmissible, or protected from disclosure, by provisions of this chapter if the agreement is signed by the settling parties and [...] [t]he agreement is used to show fraud, duress, or illegality that is relevant to an issue in dispute." This argument has merit. Further, even if portions of the FAC might be subject to mediation confidentiality, each cause of action appears to be based on more than just what occurred at mediation. Because a demurrer may not be sustained to part of a cause of action (see *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047), the demurrer is overruled.

6. 9:00 AM CASE NUMBER: C25-03818
CASE NAME: MARIO DE LEON VS. PACIFIC CLIMBING SOCIETY, A BUSINESS ENTITY
COMPLAINT
FILED BY: PACIFIC CLIMBING SOCIETY, A BUSINESS ENTITY
TENTATIVE RULING:

Defendant Pacific Climbing Society ("Defendant") filed a Demurrer to plaintiff AMERICA A. DE LEON's and MARIO DE LEON's ("Plaintiffs") Complaint on April 8, 2026 (the "Demurrer"). The Demurrer was set for hearing on August 31, 2026.

Background and Analysis

No opposition was filed. However, Plaintiffs filed a First Amended Complaint on August 18, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or **after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.** Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant's demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered **OFF-CALENDAR** as moot.
2. The Court shall issue the order after hearing.

7. 9:00 AM CASE NUMBER: C26-00107
CASE NAME: JANICE BUCHANAN VS. ULTRA406 ENTERPRISES, INC.
STRIKE DEFENDANT ULTRA406 ENTERPRISES, INC.'S OPPOSITION TO COMPLAINT
FILED BY: BUCHANAN, JANICE
TENTATIVE RULING:

Plaintiff Janice Buchanan ("Plaintiff") filed a Motion to Strike on April 10, 2026 (the "Motion to Strike"). The motion seeks to strike the pleading entitled "Defendants' Opposition to Complaint for Damages and Injunctive Relief" (the "Responsive Pleading") filed January 28, 2026 by Justin Steffes on behalf of the named corporate entity defendant Ultra406 Enterprises, Inc. ("Ultra406"). The Motion to Strike was set for hearing on August 31, 2026. No opposition has been filed to the Demurrer or Motion to Strike.

Background

Plaintiff initiated this action by the Complaint for Damages and Injunctive Relief filed January 12, 2026. There are two named defendants—Justin Steffes, individually, and Ultra406.

The Court, in connection with prior case management proceedings, issued an OSC for defendants to show cause, if any they had, why the corporate defendant Ultra406's purported Responsive Pleading should not be stricken as to Ultra406 for failure to appear through and be represented by an attorney. See Order entered June 2, 2026.

The Court ultimately struck the Responsive Pleading as to Ultra406. See Order entered July 22, 2026. As part of that order, this motion was withdrawn and the hearing vacated.

Disposition

The Court finds and orders as follows:

1. The Motion to Strike has been **WITHDRAWN** and the hearing is **VACATED**.

8. 9:00 AM CASE NUMBER: C26-00157
CASE NAME: RONDA FRANK VS. THE LAW FIRM OF J. HECTOR MORENO, JR. & ASSOCIATES
TO TRANSFER VENUE
FILED BY: THE LAW FIRM OF J. HECTOR MORENO, JR. & ASSOCIATES
TENTATIVE RULING:

The unopposed Motion to Transfer Venue is **GRANTED**. The request for sanctions is **DENIED**. Moving party to prepare and submit a proposed order after hearing.

9. 9:00 AM CASE NUMBER: C26-00599
CASE NAME: DANIEL ROBERSON VS. MERISSA BENTON
DISQUALIFY OPPOSING COUNSEL (MICHELLE WOODRUFF)
FILED BY: ROBERSON, DANIEL JACOB
TENTATIVE RULING:

Before the Court is Plaintiff Daniel Roberson's Motion to Disqualify Attorney Michelle Woodruff ("Motion").

Plaintiff's Motion is **DENIED** as explained below.

Factual and Procedural Background

Plaintiff filed the Complaint on February 19, 2026, asserting three causes of action against Defendant Merissa Benton: (1) defamation; (2) malicious prosecution – common law; and (3) intentional infliction of emotional distress. The claims are based on statements made by Defendant in a request for a Domestic Violence Restraining Order filed in Solano County Superior Court – Case No. FL24-00965 which was filed on April 26, 2024. Plaintiff and Defendant were previously in a romantic personal relationship which ended in 2013. They are the parents of a minor child.

On April 8, 2026, before Defendant appeared in the action, Plaintiff filed the instant motion. On April 10, Plaintiff filed a "Judicial Notice Packet" which indicated it contained four exhibits. No exhibits, however, were attached to the Packet. On June 29, Plaintiff filed a "Request for Judicial Notice." There is no indication what this Request is in support of. It again indicates that four documents were attached without actually attaching any exhibits.

On July 15, 2026, Defendant filed her "Fourth" and "Fifth" "Request for Judicial Notice" in support of her Opposition to the motion to disqualify. Five days later, on July 20, Defendant filed her Opposition memorandum and declarations in support thereof. The Court notes that on April 14, 2025, Defendant filed three separate RJNs (the "First," "Second," and "Third") in support of her demurrer and motion to strike. These were **not** filed in support of her opposition to this motion.

Initial Consideration

"All supporting affidavits, declarations, memoranda of points and authorities, and similar documents shall be attached to the notice of motion ... or other moving papers, when filed." (Local Rule 3.51(d).) "Failure to comply with this requirement shall be deemed cause for taking the matter off calendar." (*Ibid.*) "The original or copies of all evidence that will be presented to the court at the motion hearing must be served along with the notice of motion and points and authorities." (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2022) ¶ 9:44, citing with approval in *David S. Karton, a Law Corp. v. Musick, Peeler & Garrett LLP* (2022) 83 Cal.App.5th 1027, 1048; See also Code Civ. Proc. § 1005(b).)

Both parties' procedure of filing papers over multiple days is inappropriate and confusing. Especially, when the document's title does not indicate what motion it is in support of. Going forward, all papers in support of a motion, opposition, or reply should be filed concurrently. Absent a showing of good cause, the Court will generally not entertain documents filed on separate days in a serial fashion. Plaintiff should also make sure that he is attaching all relevant documents to his filings.

There is also no need to file serial 'requests for judicial notice,' i.e. a 'fourth' and 'fifth' RJN. The party can file a single Request for Judicial Notice in support of their motion/opposition/reply and list each of the different documents they are seeking notice of. Labeling a RJN the 'fourth in support of defendant's opposition' just adds to the confusion when there is no first, second, or third RJN in support of that opposition.

While noting the above, the Court **GRANTS** Defendant's "Fourth" and "Fifth" RJNs. Plaintiff's RJNs are **DENIED**.

Standard

"A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice." (*City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469.) Disqualification, however, is "a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a 'substantial continuing effect on future judicial proceedings.'" (*Id.* at 462 quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.)

"Ultimately, disqualification motions involve a conflict between the clients' right to their choice and the need to maintain ethical standards of professional responsibility." (*People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145 ("*Speedee*").) "The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process." (*Ibid.*)

Plaintiff argues that attorney Michelle Woodruff should be disqualified completely from representing Plaintiff in this matter based on California Rules of Professional Conduct, Rule 3.7, the so-called 'advocate-witness rule'. Rule 3.7 states, in pertinent part:

(a) A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless:

...

(3) the lawyer has obtained informed written consent from the client. ..."

Analysis

Timeliness of Motion

Defendant first argues that the motion to disqualify is premature as there is no trial pending and Rule 3.7 only pertains to an attorney advocating "in a trial."

Rule 3.7 (a) states that a "lawyer shall not act as an advocate *in a trial* in which the lawyer is likely to be a witness..." (emphasis added.) "Trial" is not limited to representation only at the trial itself. Instead, "to effectuate the rule's purpose of avoiding fact finder confusion, [courts] interpret the rule's use of the term 'trial' to encompass a pretrial evidentiary hearing at which counsel is likely to testify." (*Doe v. Yim* (2020) 55 Cal.App.5th 573, 583.) Further, courts "recognize that an attorney who 'intends to testify at trial may not participate in any 'pretrial activities which carry the risk of revealing the attorney's dual role to the jury.'" (*Ibid.* citation omitted.) "In particular, a testifying attorney should not take or defend depositions." (*Ibid.*)

As discovery is open and proceedings could very well be initiated that implicate these ethical rules, Plaintiff can seek disqualification of Ms. Woodruff at this time to ensure she does not participate in any depositions or testify at any pretrial evidentiary hearings.

Substantive Arguments

While Defendant does not show that she has provided informed **written** consent to her attorney, she does include the following statement in her declaration: "If there is a hint of a potential conflict or prejudice to me, I waive such conflict and ask that the Court deny Plaintiff's motion." (Opp. at 3:6-8,

[Benton Decl.], emphasis in original.) This statement is enough to show that Defendant will indeed provide the proper written consent if required. As such, the Court will presume written consent has been or could readily be obtained.

“[T]he general rule is that an attorney may serve as both advocate and witness ... if the client has provided its informed written consent.” (*Gerringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822.) This exception is not absolute, and a court can still limit an attorney’s role “to protect the trier of fact from being misled or the opposing party from being prejudiced.” (*Id.* at 821-22.) “The court’s discretion to disqualify a likely advocate-witness notwithstanding client consent – the exception to the exception – has been judicially interpreted to be permissible only upon ‘a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.’” (*Id.* at 822, citation omitted.)

“In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) ‘whether counsel’s testimony is, in fact, genuinely needed’; (2) ‘the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons’; (3) ‘the combined effects of the strong interests parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case.’” (*Doe*, supra, 55 Cal.App.5th at 583 quoting *Smith, Smith & Kring v. Superior Court* (1997) 60 Cal.App.4th 573, 580-81.) “[T]rial judges must indicate on the record they have considered the appropriate factors and make specific findings of fact when weighing the conflicting interests in recusal motions.” (*Id.* at 584.)

Whether Defense Counsel’s testimony is genuinely needed

Plaintiff contends that litigating his case will involve reviewing documents from a 2015 family law case involving Plaintiff and Defendant related to custody of their daughter. He argues that the documents from that matter contain handwritten alterations, that he contends were “not initialed by the judge, were not part of the typed recommendations, and were not disclosed to Plaintiff at the time.” (Motion at ¶ 8.) Notably, Plaintiff does not specify what document(s) from the family law case are at issue, nor does he attach any such documents. The document at issue appears to be a “Findings and Order After Hearing” issued on November 13, 2015, in Contra Costa Superior Court case no. D12-01051, which was provided by Defendant. (Defendant’s Fourth RJN, Ex. A, “2015 Order.”)

Plaintiff declares that he “did not receive the order at the hearing and received a copy only days later,” and was “never informed of the handwritten instructions.” He contends that attorney “Woodruff is the **only person** who can testify regarding when and how the handwritten wording was added, and whether the Court approved it.” (Motion at ¶ 11 bold in original.) He does not explain why this is the case.

Defendant provides context for what led to the 2015 Order in her declaration. Plaintiff and Defendant litigated custody of their daughter in the underlying family law matter. The last order in the case was the 2015 Order. Plaintiff did not attend the hearing which resulted in the 2015 Order. Defendant and attorney Woodruff were at the hearing. Defendant indicates that when the case was called “Judge Anita Santos reviewed the ‘Recommendations for Future Procedures’” ... and “made amendments to the recommendations.” “At every point where Judge Santos’ orders deviated from [the] recommendations, her initials appear in the margins, circled....” She makes clear that at “no point in

time did my attorney [Ms. Woodruff] alter, change, or otherwise modify any term of the order.”

Ms. Woodruff also provides a declaration that reflects the same series of events. She also makes clear that she did not make any alterations to the 2015 Order.

At this stage of the litigation, it does not appear that Ms. Woodruff’s testimony “is genuinely needed.” First, the Court notes that Plaintiff’s description that the handwritten changes in the 2015 Order “were not initialed by the judge” is incorrect. The 2015 Order clearly shows that each of the changes is initialed. It is also worth noting that Plaintiff contradicts his claim that the changes to the 2015 were not initialed when he states: “Although the Court initialed the numbered recommendation, those initials apply **only to the typed recommendation itself** and **not** to the handwritten wording beneath it.” (Motion at 4:8-10, *bolding in original*.) Plaintiff presents no evidence to support his supposition as to what the initials apply to. Nor does his contention make any logical sense given that the initials are only next to the handwritten changes in the 2015 Order.

Second, the Court can take judicial notice of the records of “any court of this state.” (Evid. Code § 452(d).) As such, there is no need for testimony regarding the 2015 Order.

Finally, even if for some reason testimony was required regarding how that 2015 Order was prepared, Ms. Woodruff is not the only person that can provide testimony regarding those circumstances. Defendant herself acknowledges she was at the hearing and provides a detailed explanation of what occurred. There is no reason to have Ms. Woodruff testify.

Plaintiff has failed to show that Ms. Woodruff’s testimony is genuinely needed.

Tactical reasons for motion to disqualify

Defendant indicates that Ms. Woodruff has represented her for over 15 years. Having represented Ms. Woodruff during the custody case and beyond, she is intimately familiar with the issues related to the parties’ relationship and the custody of their daughter.

This long-standing relationship appears to be the real reason for Plaintiff’s motion. There is no indication that Ms. Woodruff is going to need to be personally involved in this matter as a witness. As such, the only reason to try to have her disqualified would be to deprive Defendant of a trusted legal advisor that she has built a relationship with over many years. In other words, this motion appears to have been brought “purely for tactical reasons.” (*Doe*, *supra*, 55 Cal.App.5th at 583.)

Choice of representation versus expense and prejudice in finding replacement counsel

The California Supreme Court has acknowledged that “important right to counsel of one’s choice....” (*SpeedDee*, *supra*, 20 Cal.4th at 1145.) A motion to disqualify weights this right with “the need to maintain ethical standards of professional responsibility.” (*Ibid*.)

“The court’s discretion to disqualify a likely advocate-witness notwithstanding client consent – the exception to the exception – has been judicially interpreted to be permissible only upon ‘a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.’” (*Geringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 822.)

Plaintiff makes no such showing. As noted above, there does not appear be any need for the testimony of attorney Woodruff. Even if it were necessary, Plaintiff makes no showing to explain how

this would prejudice him. The Court also notes that Plaintiff did not file a Reply to address any of Defendant's points.

Given the above, the Court finds that this factor weighs in favor of Defendant.

Summary and Conclusion

Weighing the *Doe* factors outlined above, the Court finds there is no basis to disqualify Ms. Woodruff as counsel for Defendant.

Plaintiff's Motion is **DENIED**.

10. 9:00 AM CASE NUMBER: MSC20-00271

CASE NAME: MENASCO VS KILARR

ATTORNEYS FEES MOTION FILED

FILED BY:

TENTATIVE RULING:

Parties to Appear.

11. 9:00 AM CASE NUMBER: MSN20-1173

CASE NAME: TOBIAS M LESTER VS DEBORAH COOPER

AWARD OF REASONABLE ATTORNEY FEES AND COSTS

FILED BY:

TENTATIVE RULING:

Petitioner Tobias Lester ("Petitioner") filed a Motion for Award of Reasonable Attorneys' Fees and Costs on January 23, 2026 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$75,385.00 in attorneys' fees, with a 2.00 multiplier, for a total of \$145,520.00, plus \$2,535.93 in costs. The Motion for Fees and Costs was set for hearing on June 8, 2026. The Court *sua sponte* continued the matter from June 8, 2026 to August 31, 2026. The motion is opposed.

Background

This matter arises from a Petition for Writ of Mandate filed nearly six years ago in connection with a Petitioner's challenge to a proposed local ballot measure in Contra Costa County, Measure X, relating to a sale tax increase (the "Proposed Sales Tax Measure").

The petition was largely resolved at the time by a pair of Orders entered by the Court in August 2020. See Orders entered August 27, 2020. Those orders essentially granted relief on two matters: (1) that the proposed ballot measure question language "be amended by removing the phrase 'requiring fiscal accountability';" and (2) that the proposed impartial analysis language be amended by deleting a sentence ("State law authorizes Contra Costa County to adopt an ordinance proposing a one-half 20 of one percent (0.5%) sales tax."). As later stipulated, the latter assertion was a misstatement of the then existing law.

The Court notes that year ago, the Court rejected a proposed form of judgment, arguably having considered its two August 2020 orders constituting the judgment in the writ proceeding. See County of Contra Costa's Objection to Petitioner's Proposed Judgment filed June 29, 2021 and Clerk's

Correspondence Memo dated January 7, 2022.

The confusing procedural history is summarized at length in the Court's prior ruling on Petitioner's motion to amend that preceded the Amended Petition filed in October 2024. See Minute Order dated September 30, 2024. Ultimately, the Court concluded that a final judgment on all claims had not been properly entered previously. *Id.*

After a second skirmish by way of a demurrer to the Amended Petition, the matter was resolved by way of a "STIPULATED SETTLEMENT AND FINAL JUDGMENT" filed July 21, 2025 (the "July 2025 Stipulation" and the "July 2025 Judgment," respectively).

The Court reserved jurisdiction to consider any award of fees and costs. See July 2025 Judgment, ¶15 ("The Court shall retain jurisdiction over any motion Petitioner might make for attorneys' fees and/or costs associated with this action brought consistent with California Rules of Court, rules 3.1700 and 3.1702, and other applicable laws")

Petitioner has now brought this motion for an award of fees and costs.

The Motion for Fees and Costs is supported by the declaration of Petitioner's attorney summarizing the conduct of the litigation and outcome achieved. See Declaration of Jason A. Bezis filed January 23, 2026 ("Bезis Decl.") ¶19 *et seq.*; see Amended Declaration of Jason A. Bezis filed May 8, 2026 ("Amended Bezis Decl.") ¶19 *et seq.* Petitioner also submitted the Declaration of Timothy A. Bittle filed May 8, 2026.

Counsel Bezis' declaration describes the billing attorneys' and paralegals' background and professional experience and the reasonableness of their billing rates. See Amended Bezis Decl., ¶14 *et seq.* The declarations describe the work done, the results achieved and proffers supporting billing records. *Id.* at ¶19 *et seq.* and **Exhibit 1** thereto.

The total "base" amount billed was **\$75,385.00** (\$72,760.00 plus \$2,625.00). Bezis Decl., ¶¶128-30 and **Exhibit 1** thereto. Plaintiff seeks a "lodestar multiplier" of 2.00 in light of, among other things, the contingency representation, the conduct of the litigation and the outcome achieved. See *id.* at ¶126 *et seq.*; see also Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p. 16 *et seq.*

Real Parties in Interest Contra Costa County and Contra Costa County Board Of Supervisors (collectively, the "County") filed an Opposition on May 21, 2026, along with an opposition declaration ("Russi Decl.").

Petitioner filed a Rely on June 1, 2026, along with a supplemental Declaration of Jason A. Bezis filed June 1, 2026 ("Supp. Bezis Decl.")

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at

1096.

The Court has reviewed the stated hours and the nature of the legal work reflected in the proffered billing entries, considering, among other things, the work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rate for such work (\$500.00 per hour through September 2020 and escalating in subsequent years up to \$620.00 per hour as of 2026) and the number of hours reasonably expended. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court finds the hours billed and the total base fees of \$75,385.00 to be reasonable and necessary to the conduct of the litigation.

The Court further finds that the time incurred in connection with the reply, **\$3,038.00**, be reasonable and necessary to the conduct of the litigation. \$75,385.00 plus \$3,038.00 equals **\$78,423.00**.

The Court further finds that the a lodestar multiplier of 1.25 is just and appropriate in view of all of the relevant factors. \$47,909.50 times 1.25 equals **\$98,028.75**.

The Court has considered and rejects the County's arguments to the effect that Petitioner has not shown entitlement to recoup attorneys' fees pursuant to Code of Civil Procedure section 1021.5.

Realistically assessing the litigation and its outcome, Petitioner successfully sought and obtained rulings by this Court mandating substantive changes to county-wide ballot language. See Orders entered August 27, 2020. While arguably narrow in scope, this relief was nonetheless significant and had a material impact on the ballot measure question language to be considered by the county voters. The July 2025 Stipulation also effectively represented a material success for Petitioner, albeit again on a narrow but important issue.

The Court finds that Petitioner was the successful prevailing party on the core relief sought, that the action resulted in the enforcement of an important right affecting the public interest, that a significant benefit was conferred on the general public or a large class of persons, and that the necessity of private enforcement and the attendant financial burden make an award of fees appropriate.

The Court has considered and rejects the County's arguments to the effect that the fees claimed were not reasonable.

The Court does not make any determination, at this stage, as to the parties from whom Petitioner is entitled to recover the awarded fees and costs.

Costs

The Court finds that the claimed costs in the amount of **\$2,535.93** are recoverable and were necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is **GRANTED**.
2. Petitioner is awarded and shall recover attorneys' fees in the sum of **\$98,028.75**.
3. Petitioner is awarded and shall recover costs of suit in the sum of **\$2,535.93**.
4. **PARTIES TO APPEAR** to address the parties from whom Petitioner is entitled to recover the awarded fees and costs.

12. 9:00 AM CASE NUMBER: N23-0180
CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ

TAX COSTS

FILED BY:

TENTATIVE RULING:

Petitioner and plaintiff Thomas Butt (“Petitioner”) filed a Motion to Strike or Tax Costs on February 9, 2026 (the “Motion to Tax Costs”). The Motion to Tax Costs was initially set for hearing on June 22, 2026. The hearing was subsequently continued to August 31, 2026.

Background

A judgment was entered on January 20, 2026 (the “Judgment”). The Judgment determined that defendants and respondents (“Defendants”) are the prevailing parties, after a Motion for Judgment on the Pleadings as to Petitioner’s Verified Petition was granted without leave to amend. See Judgment, p. 2.

Thereafter, a Memorandum of Costs was filed by defendants on February 9, 2026 (the “Memo of Costs”). The Memo of Costs seeks an award of \$3,400.19 in total costs.

Petitioner then brought this Motion to Tax Costs.

No opposition has been filed.

In connection with the initial hearing date on June 22, 2026, the Court issued a tentative ruling ordering the parties to meet and confer regarding the Cost Items at Issue, as set forth below. That tentative ruling was adopted as the order of the Court. See Order entered June 22, 2026 (the “June 22nd Order”).

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

The Motion to Tax Costs takes issue with three cost items (the “Cost Items at Issue”):

- 1. Cost Item 1 in the Amount of \$495 for Filing and Motion Fees.** Petitioner contends that these are not recoverable because “these fees are waived by statute for public entities and thus not incurred.”
- 2. Cost Item 9 in the Amount of \$1,754.36 for Court-Ordered Transcripts.** Petitioner asserts that “no transcripts were ordered by the Court”
- 3. A Portion of Cost Item 14 in the Amount of \$243.00 for Fees for Electronic Filing or Service.** Petitioner contends that “the claimed personal service expense is not an electronic filing or service fee and is improperly included in this category.”

Pursuant to the Court’s June 22nd Order, Defendants were ordered file a declaration under penalty of

perjury setting forth the basis for the recovery of the cost item(s). See June 22nd Order, p. 2.

No such declaration was filed by Defendants as ordered.

The Cost Items at Issue do not appear to be proper charges and Defendant have failed to oppose the motion or provide the supplemental supporting information as directed by the Court. The Court does not find that Cost Items at Issue were reasonably necessary to the conduct of the litigation and properly recoverable costs.

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is **GRANTED**.
2. The Cost Items at Issue are hereby STRICKEN and the claimed costs taxed in the amount of \$2,492.36. Accordingly, Defendants' recoverable costs are reduced to **\$907.83**.
3. The Court shall issue the order after hearing.

13. 9:00 AM CASE NUMBER: N26-0624

CASE NAME: IN RE J.L., A MINOR

MINOR'S COMPROMISE

FILED BY: CELESTE LEARY and MICHAEL LEARY

TENTATIVE RULING:

Petitioners Celeste Leary and Michael Leary ("Petitioners") as the parents of the claimant Jonelle Leary filed a Petition for Approval of Compromise of Claim on or about April 8, 2026 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on July 1, 2025.

Analysis

An enforceable settlement of a minor's claim or that of a person lacking the capacity to make decisions can only be consummated with court approval. Prob. Code. §§ 2504, 3500, 3600 *et seq.*; Code Civ. Proc. § 372; see *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337. When a minor is a party that person must appear by a guardian or court appointed guardian as litem. Code Civ. Proc. § 372.

A petition for court approval of a compromise of a minor's disputed claim must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. Rule 7.950 of the California Rules of Court ("CRC").

The Minor's Compromise is unopposed.^{[\[1\]](#)}

The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.

2. The Court shall enter the proposed form(s) of order lodged with the moving papers.

^[1] Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2026) (“CJER Civ. Pro.—Before Trial”), § 5.43 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor’s compromise and concluding that a judge “may decide a petition to approve or disapprove a minor’s compromise on an ex parte basis, in chambers”). In any event, no party has sought to appear to oppose the Minor’s Compromise.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-00400
CASE NAME: SHERRI BROWN VS. CITY OF PITTSBURG
COMPEL FURTHER RESPONSES TO INTEROGS, SET 1
FILED BY: BROWN, SHERRI
TENTATIVE RULING:

Parties to Appear.

15. 9:01 AM CASE NUMBER: C25-00713
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION
COMPEL RESPONSES TO FORM INTEROGS, SET 1
FILED BY: GUPTA, PRAVEEN
TENTATIVE RULING:

On January 15, 2026, plaintiff Praveen Gupta (“Plaintiff”) filed a motion to compel (the “Motion to Compel”) responses to discovery served upon defendants The Vintner Condominium Homeowners’ Association (the “HOA”) and New Pipes Inc. (“New Pipes”) (collectively, “Defendants”). The motion also seeks an order deeming the truth of the matters specified in requests for admissions served. The Motion to Compel was initially set for hearing on April 17, 2026. The motion was continued by the Court to August 31, 2026.

Background

Plaintiff served Defendants with certain discovery requests on October 22, 2025, including form interrogatories, special interrogatories, requests for admissions, and requests for production of documents. See Declaration of Praveen Gupta filed January 15, 2026 as part of the Motion to Compel (“Gupta Decl.”) ¶2. Plaintiff contends responses were due by December 5, 2025, after an extension was given for responses. *Id.*

Plaintiff contends Defendants served objection only responses. *Id.* at ¶15 and **Exhibit C**.

Responses were served December 5, 2026 by the HOA. *Id.* at **Exhibit C**.

Analysis

While it does not appear that any opposition has been filed to the Motion to Compel, the motion is procedurally defective, at least as to the HOA which responded to the discovery requests at issue. Plaintiff has not filed any Separate Statement in support of the Motion to Compel.

Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5.

There are very specific requirements for the formatting and content of a Separate Statement. See CRC 3.1345(c) (“A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.”). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id.* at (c)(1)-(2).

No Separate Statement in compliance with the requirements of CRC 3.1345 was ever filed by Plaintiff. For this reason alone, the motion is procedurally defective.

Even if not procedurally defective, the Court would deny the Motion to Compel because Plaintiff failed to meet and confer in good faith—either in person, by telephone, or by videoconference—to resolve the substantive discovery issues before filing this motion. See Code Civ. Proc. § 2016.040 (“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”).

As to New Pipes, it is not clear to the Court if New Pipes responded to the discovery at issue. No opposition papers have been filed by New Pipes. New Pipes filed a joinder to a motion for a protective order relating to the discovery. Gupta Decl., **Exhibit D**. However, that motion was eventually withdrawn. Some meet and confer correspondence appears in the supporting declaration that suggests that responses were received. See Motion to Compel, p. 334, Email dated November 28, 2025 from Plaintiff (“I write to meet and confer regarding New Pipes, Inc.’s discovery responses which assert a global objection to *all* requests...”).

Disposition

The Court finds and orders as follows:

1. The Motion to Compel is **DENIED** as to the discovery requests propounded upon the HOA. Any requests for sanctions are **DENIED**.
2. As to the discovery requests propounded upon New Pipes, the parties are **ORDERED TO APPEAR** to address the matter.

16. 9:01 AM CASE NUMBER: C25-02477
CASE NAME: RICHARD KABASINSKAS VS. KAISER FOUNDATION HOSPITALS
COMPEL KAISER FOUNDATION HOSPITALS TO FURTHER RESPOND TO PLAINTIFF'S FORM
INTERROGATORY - EMPLOYMENT LAW (SET ONE) NO. 215.1
FILED BY: KAISER FOUNDATION HOSPITALS
TENTATIVE RULING:

Plaintiff Richard Kabasinkas ("Plaintiff") filed a motion to compel a further response to a form interrogatory on March 9, 2026 (the "Motion to Compel Further Response"). The Motion to Compel Further Response was set for hearing on August 31, 2026. The motion is opposed.

Background

The discovery request at issue (the "Discovery Request at Issue") is the following:

1. Form Interrogatories—Employment Law, Set One (the "**FROGs—Employment**") to defendant Kaiser Foundation Hospitals ("Kaiser") **No. 215.1**.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402. On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Having considered the moving papers, including the Separate Statement, the opposition papers, and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Request at Issue.

Discovery Request at Issue

FROGs—Employment, No. 215.1.

This form interrogatory seeks the following information:

215.1 Have YOU OR ANYONE ACTING ON YOUR BEHALF interviewed any individual concerning the ADVERSE EMPLOYMENT ACTION? If so, for each individual state:

- (a) the name, **ADDRESS**, and telephone number of the individual interviewed;
- (b) the date of the interview; and
- (c) the name, **ADDRESS**, and telephone number of the **PERSON** who conducted the interview.

Among others, Form Interrogatory No. 215.1 incorporates the following defined term:

(b) **YOU OR ANYONE ACTING ON YOUR BEHALF** includes you, your agents, your employees, your insurance companies, their agents, their employees, your attorneys, your accountants, your investigators, and anyone else acting on your behalf.

The subject response objects that the request is “vague and ambiguous” for a number of different stated reasons. See Plaintiff’s Separate Statement filed March 9, 2026. The response further contends that the interrogatory constitutes “[a]n unwarranted invasion of privacy rights.” The response further objects on the grounds of “...attorney-client privilege, the work-product doctrine, or other privileges or exemptions of similar legal effect.” The response further objects that the request is “duplicative of General Form Interrogatory No. 12.2.” The response further objects that the interrogatory “further objects to this Interrogatory to the extent that it calls for an admission that any action satisfies the legal definition of an ‘adverse employment action.’”

Subject to such objections, the substantive response states “Yes. All other interviews were taken by Defendant’s legal counsel in the course of an attorney-client relationship with Defendant and in connection with this litigation, so any information about those interviews is protected by the attorney-client privilege and the work-product doctrine,” followed by citations to case authority.

The Court has considered and overrules the stated objections.

The responding party is overreaching for various ways in which to characterize the interrogatory as “vague and ambiguous.” This is a standard form interrogatory and the call of the question and its subparts are not so ambiguous so as to render the interrogatory unintelligible and/or preclude an intelligent reply. See CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) (“CJER Civ. Pro.—Discovery”), § 5.5. The stated “vague and ambiguous” and related objections are **OVERRULED**.

The responding party has not shown that the request constitutes an objectionable on some sort of “privacy rights” grounds. To the extent that an entity defendant has any “privacy rights,” they do not shield it from discovery. *SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 756. Rather, the court must employ “a balancing test” and consider “What should be the proper balancing of the requested discovery and its relevance to the subject matter involved in the pending action, and whether it ‘appears reasonably calculated to lead to the discovery of admissible evidence,’ as opposed to any countervailing considerations, such as privacy and privilege?” *Hecht, Solberg, Robinson, Goldberg & Bagley LLP v. Superior Court* (2006) 137 Cal.App. 4th 579, 595; see also *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (where a right to privacy is implicated, courts weigh the loss of privacy against the “legitimate and important countervailing interests disclosure serves.”). The Court has weighed and considered the asserted privacy against the countervailing interest in disclosure and concludes that the interrogatory seeks properly discoverable information about potential material percipient witnesses that outweigh any privacy concerns regarding that information. The privacy objection is **OVERRULED**.

The objections that the interrogatory is “duplicative of General Form Interrogatory No. 12.2” and somehow “calls for an admission that any action satisfies the legal definition of an ‘adverse employment action.’” are both **OVERRULED**. Neither states a valid legal objection to discovery.

This brings the Court to the fundamental objections at issue, the attorney-client privilege and work-product doctrine objections. The rubric for the resolution of the work-product doctrine is plainly laid out in the very case law cited in Kaiser’s response to the interrogatory:

...[W]e hold that witness statements procured by an attorney are not automatically entitled as a matter of law to absolute work product protection. Instead, the applicability of absolute protection must be determined case by case. An attorney resisting discovery of a witness statement based on absolute privilege must make a preliminary or foundational showing that disclosure would reveal his or her “impressions, conclusions, opinions, or legal research or theories.” (§ 2018.030, subd. (a).) Upon an adequate showing, the trial court should then determine, by making an in camera inspection if necessary, whether absolute work product protection applies to some or all of the material.

Coito v. Superior Court (2012) 54 Cal. 4th 480, 495-496 (“*Coito*”). The *Coito* court went on to hold that “a witness statement obtained through an attorney-directed interview is, as a matter of law, entitled to at least qualified work product protection.” *Id.* at 497.

A party seeking disclosure has the burden of establishing that denial of disclosure will unfairly prejudice the party in preparing its claim or defense or will result in an injustice. *Coito, supra*, 54 Cal.4th at 499. If the party resisting discovery alleges that a witness statement, or portion thereof, is absolutely protected because it “reflects an attorney's impressions, conclusions, opinions, or legal research or theories,” that party must make a preliminary or foundational showing in support of its claim. *Id.* at 499-500.

No foundational showing has been made by Kaiser as that the disclosure of any particular witness statements would reveal its attorneys’ “impressions, conclusions, opinions, or legal research or theories.” While not the focus of both sides’ briefing, the Court also notes that no foundational showing has been made by Kaiser that any responsive statements would be protected by the attorney-client privilege either.

At best, the opposition declaration states, in a conclusory fashion that “all interviews at issue were taken by Defendant’s litigation counsel in the course of the attorney-client relationship and in connection with this litigation.” See Declaration of Jennifer L. Mora filed August 17, 2026 (“Mora Decl.”) ¶5. That fails to provide that sort of showing described by the *Coito* court.

Indeed, that assertion begs the issue discussed at length in *Coito*, that the mere fact that interviews were arranged by counsel in the course of investigation is not necessarily sufficient to shield them from discovery under the qualified privilege. See *Coito, supra*, 54 Cal.4th at 495 (“We cannot say, however, that witness statements procured by an attorney will always reveal the attorney's thought process. The Court of Appeal below posited a scenario in which an attorney collects statements from witnesses to an accident with no particular foresight, strategy, selectivity, or planning: “What, for example, of the situation in which an attorney sends an investigator to interview all witnesses listed in a police report, and the investigator asks few if any questions while taking the witnesses' statements?”).

The opposition declaration does not identify any persons interviewed. See Mora Decl., ¶1 *et seq.* It does not describe how those interviews were conducted. *Id.* It does not give details about the context of the interviews, such as when they were taken. *Id.* It says nothing about the nature of any questions asked or any attorney’s involvement in formulating those questions or following up on them. *Id.*

In the absence of such foundational showing, Kaiser has not adequately shown that the qualified work product protection applies to shield production of the requested information. It certainly has not shown that it may assert a blanket objection and refuse to provide any further details responsive to the subject interrogatory. When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

The work-product doctrine and attorney-client privilege objections are **OVERRULED**.

The Court finds that the responding party’s answer to this interrogatory is incomplete. The responding

party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits. See Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 8:1047.

The motion is **GRANTED** as to this interrogatory and a further response shall be made as ordered below.

Sanctions

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds “substantial justification” for that party’s position or other circumstances making the sanction “unjust.” Code Civ. Proc. §§ 2030.300(d); see Weil & Brown, § 1920.

In addition, a failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered and denies the imposition of sanctions against either the moving or responding party. Kaiser raised some objections that were substantially justified although it ultimately did not prevail on them for the reasons discussed above. The Court is also mindful of the substantial meet and confer efforts made by both sides to resolve the matter overall. Therefore, the Court concludes that sanctions are not appropriate or justified. However, the Court reserves jurisdiction to consider the issue of sanctions further and to impose sanctions if there is non-compliance with the orders made herein by the Court.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Response is **GRANTED**, as set forth further above.
2. Kaiser shall serve a verified further amended response to the Discovery Request at Issue within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The moving party shall prepare the order after hearing for the Court’s review and approval.

17. 9:01 AM CASE NUMBER: C25-02936

CASE NAME: SYLVIA HOLDEN VS. SFS 39 INC.

MOTION TO QUASH CONTINUED FROM 7/27/26

FILED BY: PLAINTIFF SYLVIA HOLDEN

TENTATIVE RULING:

Plaintiff Sylvia Holden (“Plaintiff”) filed a motion seeking to quash or limit a subpoena for production of medical records on January 30, 2026 (the “Motion to Quash”). The Motion to Quash was set for hearing on July 27, 2026. The motion is opposed.

Background

Defendant SFS 39 Inc. (“Plaintiff”) issued a subpoena to Kaiser Foundation Health Plan, Inc. dated January 15, 2026 seeking the following medical records for Plaintiff (collectively, the “Subpoenaed Medical Records”):

DOCUMENTS TO BE PRODUCED

1. All chart notes, records, and reports related to Plaintiff Sylvia Holden (SSN xxx-xx-1550; DOB 05-22-1970), including, but not limited to, all medical records and other documents referencing or related to Claimant's physical, mental, and/or emotional condition and treatment from January 1, 2016 through the present.

See Declaration of Vincent Calderone filed as part of Motion to Quash ("Calderone Decl.") ¶2 and **Exhibit A** thereto, p. 5 (Attachment 3).

Plaintiff objected to the scope of the Subpoenaed Medical Records sought and engaged in meet and confer efforts which did not resolve the matter. Calderone Decl., ¶3 *et seq.*

Plaintiff subsequently filed the Motion to Quash. In connection with Case Management Conference (CMC) proceedings, the Court ordered the parties to meet and confer regarding the motion. See Order entered April 6, 2026.

Opposition papers were filed on July 14, 2026.

At the July 27, 2026 hearing, the parties were ordered to engage in further meet and confer regarding resolution of the Motion to Quash. If not resolved through such informal talks, the parties were ordered to prepare and submit a Joint Statement as to any remaining issues in dispute. See Order entered July 29, 2026.

The parties filed their Joint Statement on August 24, 2026.

The City filed an opposition on July 21, 2026 (the "Opposition").

Plaintiff filed a reply on July 16, 2026 (the "Reply").

Analysis

The crux of the dispute is about the scope of production of Plaintiff's medical records which Plaintiff contends is overbroad and overly invasive of her privacy rights.

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the "legitimate and important countervailing interests disclosure serves." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 ("*Williams*").

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. *Williams, supra*, 3 Cal.5th at 552. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. *Id.* A court must then balance these competing considerations. *Id.* Obvious invasions of interests fundamental to personal autonomy must be supported by a compelling interest. *Id.*

Noone suggests that Plaintiff does not, generally, have a legally protected privacy interest in the Subpoenaed Medical Records. The issue is the weighing of those interests against the other side's countervailing interests in obtaining discovery that may lead to the discovery of admissible evidence

relevant to Plaintiff's claims and contentions in this litigation.

Having considered the parties' respective positions as outlined in the Joint Statement, as well as all other pleadings filed, the Court finds that the Subpoenaed Medical Records, as written, is excessively broad.

The Court concludes, in weighing the competing interests in light of the totality of the circumstances, that it is just and appropriate to limit the scope of the Subpoenaed Medical Records as discussed below.

Scope of Production

The custodian of records for the medical provider shall produce records responsive to the Subpoenaed Medical Records ONLY to the following extent:

1. All Subpoenaed Medical Records from January 1, 2022 to present; and
2. All Subpoenaed Medical Records from January 1, 2018 through December 31, 2021 relating to (i) the presentation, diagnosis or treatment of mental or emotional health conditions, including anxiety, depression, PTSD, sleep disturbance, and cognitive issues and/or (ii) the presentation, diagnosis or treatment of gastrointestinal or stress-related conditions.

The Motion to Quash is granted to the extent that the Court limits the production of Subpoenaed Medical Records to the foregoing records. Code Civ. Proc. § 1987.1 (court "may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders."); see CJER, *California Judges Benchbook: Civil Proceedings—Discovery* (2025) ("CJER Civ. Pro.—Discovery"), § 14.22.

Protective Order

Any and all records produced pursuant to this order shall be subject to the Protective Order approved by the Court and filed February 2, 2026 and handled by the litigants in accordance with its terms and conditions.

Sanctions

No party has sought the imposition of sanctions. The Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling or considering the imposition of sanctions for non-compliance.

Disposition

The Court hereby finds and orders as follows:

1. The Motion to Quash is **GRANTED IN PART** as specified above.
2. The Court reserves jurisdiction over this matter as it relates to issuing further orders in accordance with this ruling.
3. Moving party to prepare the order after hearing.